

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2013-814

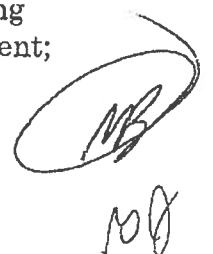
STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF GABRIELA JARAMILLO, LICENSE NO. 6289,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Gabriela Jaramillo, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case number 2013-814 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2013-814. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about August 2012, Respondent made two incorrect essential entries on a patient record.
 - b. The recording errors consisted of documenting two back-to-back individual therapy sessions for the same patient instead of documenting one long session. These recording errors did not result in any personal gain for Respondent; nor was there any harm to the patient.

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5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated § 12-43-222(1)(g) and (u), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PRACTICE EVALUATION

7. Within 30 days of the effective date of this Order, Respondent will submit, in writing, three proposed practice evaluators for the Board's approval. Respondent will include a Board-approved practice evaluator application from each potential evaluator, with attached curriculum vita or resume. The proposed practice evaluators will meet the following criteria:

a. The practice evaluator will be a licensed, certified, or registered, currently practicing mental health provider in the State of Colorado; and

b. It is recommended that the practice evaluator have a minimum of five years' experience and not have been subject to professional discipline; and

c. The practice evaluator will have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

8. If the Board does not approve any of the three proposed practice evaluators, Respondent will repeat the process outlined in paragraph 7 above.

9. The practice evaluator will conduct a practice evaluation, which will examine all aspects of Respondent's current record-keeping practices as to current patients for the two months immediately preceding the date of this agreement.

10. If the Board determines from the practice evaluation report that all or any part of Respondent's record-keeping practices are below the generally accepted standards of practice, Respondent will immediately be placed on probation for one year.

11. If the Board determines from the practice evaluation report that Respondent's record-keeping practices are within the accepted standards of practice, Respondent will not be placed on probation, there will not be any practice monitoring required, and this disciplinary action will be considered successfully completed.

PROBATION

12. If required pursuant to paragraph 10 above, Respondent's license to practice professional counseling in the State of Colorado will be placed on probation for one (1) year commencing from the date the Board makes such a determination. During the probationary period, Respondent will be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, including having a practice monitor in place, Respondent will cease the practice of professional counseling.

13. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation will resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

14. Respondent will report to the Board if she discontinues the practice of professional counseling or if Respondent is not practicing professional counseling at the time this Order is executed. Respondent will notify the Board upon resuming the practice of professional counseling.

15. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in the State of Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

16. Respondent may request early termination of probation and practice monitoring at any time. All requests for early termination will be in writing and will include a written letter of support from the practice monitor. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE MONITOR

17. During the term of probation, if required, Respondent's record-keeping practices will be monitored by a practice monitor, who shall be the same person as the practice evaluator appointed pursuant to Paragraph 7 above.

18. Respondent and the practice monitor will enter into a written contract for practice monitoring. Respondent will not perform any act requiring a license to practice professional counseling until Respondent and the practice monitor have entered into a written contract for monitoring.

19. The practice monitor will provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports, and all practice evaluation reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor.

20. The practice monitor will ensure that Respondent obtains a release of mental health records allowing the practice monitor access to such records from each of Respondent's patients.

21. The practice monitoring will consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of patient contact, but at least once a month. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing record-keeping in accordance with generally accepted standards of practice.

22. The practice monitor will submit his/her first written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports will be submitted on the fifth day of each month until the probationary period is completed.

23. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days' notice prior to requiring the practice monitor's attendance at any Board meeting.

24. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice record-keeping in accordance with generally accepted standards of practice, and/or has committed a violation of the practice act or rules and regulations, the practice monitor will immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Respondent is able to practice in accordance with generally accepted standards of practice and whether emergency action should be taken pursuant to §§ 24-4-104 and 12-43-224(2)(c)(II), C.R.S .

25. Respondent will make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order,

the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent will submit, in writing, a new proposed practice monitor to the Board within 30 days.

26. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice will state the reason for the termination. Respondent will immediately initiate efforts to obtain another Board-approved practice monitor, who will conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another practice monitor in place before the termination date, Respondent will cease the practice of professional counseling until she has another Board-approved practice monitor in place.

TERMS AND CONDITIONS

27. Respondent will strictly observe the prohibitions set forth in § 12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that she practices in accordance with the generally accepted standards of practice.

28. All expenses incurred or associated with the practice evaluation, practice monitoring, or any other requirement necessary to fulfill the terms of this Order will be the sole responsibility of Respondent and not the Board.

29. During the pendency of this Order, Respondent agrees that she will provide permission to and allow her practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that Respondent is not practicing record-keeping in accordance with generally accepted standards of practice. As part of this Order, Respondent expressly waives her right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that she is not practicing record-keeping in accordance with generally accepted standards of practice.

30. In the event Respondent relocates at any time during the probationary period, Respondent will notify the Board of the change of address within 30 days of the effective date of such change.

31. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

32. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

33. The Order entered pursuant to this Stipulation and Final Agency Order will constitute a Board Order for purposes of § 12-43-222, C.R.S., and will have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

34. Respondent acknowledges and agrees that any violation of this Order will constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action will not affect the obligation of Respondent to comply with the terms of this Order, and this Order will remain operative and in full force and effect.

35. Respondent will obey all Municipal, State, and Federal laws regarding her professional obligations as a licensee while this Order is in effect.

36. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision will be severed, and the remainder of this Order will be given full force and effect.

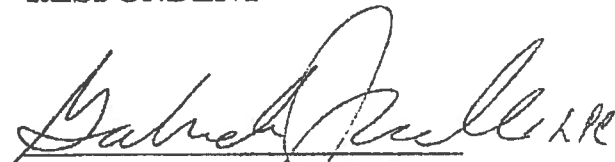
37. This Order will become effective as a final agency order of the Board upon mailing a fully-executed copy by first class mail to Respondent at Respondent's address of record with the Board and/or to Respondent's attorney.

38. This Order will be admissible as evidence at any hearing held before the Board.

39. This Order will be a public record in the custody of the Board.

AGREED TO AND ACCEPTED
BY:

RESPONDENT


GABRIELA JARAMILLO, LPC

Dated:

9/15/2015

AGREED TO AND ORDERED BY:

COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


CATHERINE RODRIGUEZ
Program Director

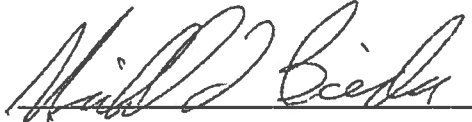
Dated:

September 16, 2015



APPROVED AS TO FORM:

CYNTHIA H. COFFMAN
Attorney General



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CERTIFICATE OF SERVICE

This is to certify that I have duly served the enclosed **STIPULATION** upon all parties herein by depositing copies of the same in the United States mail via first class mail, at Denver, Colorado this 17th day of September, 2015, addressed as follows:

Gabriela M Jaramillo
PO Box 794
Brighton, CO 80601

Michael Bieda
550 South Wadsworth Blvd.
Suite 401
Lakewood, CO 80226



Board Staff

